

is not a king, therefore he cannot make David a king. It followeth not by the Prelate's ground. So the king is not an inferior judge. What! Therefore he cannot make an inferior judge? 9. The power of life and death is eminently and virtually in the people, collectively taken, though not formally. And though no man can take away his own life, or hath power over his own life formally, yet a man, and a body of men, hath power over their own lives, radically and virtually, in respect they may render themselves to a magistrate, and to laws which, if they violate, they must be in hazard of their lives; and so they virtually have power of their own lives, by putting them under the power of good laws, for the peace and safety of the whole. 10. This is a weak consequence. None hath power of his own life, therefore, far less of his neighbour's (saith the Prelate). I shall deny the consequence. The king hath not power of his own life, that is, according to the Prelate's mind, he can neither, by the law of nature, nor by any civil law, kill himself; therefore, the king hath far less power to kill another; it followeth not; for the judge hath more power over his neighbour's life than over his own. 11. But, saith the P. Prelate, the community conceived without government, all as equal, endowed with nature's and native liberty, hath no power of life and death, because all are born free; and so none is born with dominion and power over his neighbour's life. Yea, but so, Mr P. Prelate, a king considered without government, and as born a free man, hath not power of any man's life more than a community hath; for king and beggar are born both alike free. But a community, in this consideration, as they come from the womb, have no politic consideration at all. If you consider them as without all policy, you cannot consider them as invested with policy; yea, if you consider them so as they are by nature, void of all policy, they cannot so much as add their after-consent and approbation to such a man to be their king, whom God immediately from heaven maketh a king; for to add such an after-consent, is an act of government. Now, as they are conceived to want all government, they cannot perform any act of government. And this is as much against himself as against us,

2. The power of a part and the power of the whole is not alike. Royalty never ad-

vanceth the king above the place of a member; and lawyers say, the king is above the subjects, *in sensu diviso*, in a divisive sense, he is above this or that subject; but he is inferior to all the subjects collectively taken, because he is for the whole kingdom, as a mean for the end.

Obj.—If this be a good reason, that he is a mean for the whole kingdom as for the end; that he is therefore inferior to the whole kingdom, then is he also inferior to any one subject; for he is a mean for the safety of every subject, as for the whole kingdom.

Ans.—Every mean is inferior to its complete, adequate, and whole end; and such an end is the whole kingdom in relation to the king; but every mean is not always inferior to its incomplete, inadequate, and partial end. This or that subject is not adequate, but the inadequate and incomplete end in relation to the king.

The Prelate saith, Kings are *Dii Elohim*, gods; and the manner of their propagation is by filiation, by adoption, sons of the Most High, and God's first-born. Now, the first-born is not above every brother severally; but if there were thousands, millions, numberless numbers, he is above all in precedence and power.

Ans.—Not only kings but all inferior judges are gods. Psal. lxxxii., God standeth in the congregation of the gods, that is not a congregation of kings. So (Exod. xxii. 8) the master of the house shall be brought **אל־האלהים** to the gods, or to the judges. And that there were more judges than one, is clear by ver. 9; and if they shall condemn **ירשעון jarshignur, condemnarint**, (John x. 35, **καὶ αὐτοὶ**) He called them gods; Exod. iv. 16, "Thou shalt be to Aaron **לֵאלהים** as a god." They are gods analogically only. God is infinite, not so the king. God's will is a law, not so the king's. God is an end to himself, not so the king. The judge is but God by office, and representation, and conservation of the people. It is denied that the first-born is in power before all his brethren, though there were millions. That is but said, one, as one, is inferior to a multitude. As the first-born was a politic ruler to his brethren, he was inferior to them politically.

Obj.—The collective university of a kingdom are subjects, sons, and the king their father, no less than this or that subject is the king's subject. For the university of

subjects are either the king, or the king's subjects; for all the kingdom must be one of these two; but they are not the king, therefore they are his subjects.

Ans.—All the kingdom, in any consideration, is not either king or subjects. I give a third: The kingdom collective is neither properly king nor subject; but the kingdom embodied in a state, having collateral, is a co-ordinate power with the king.

Obj.—The university is ruled by laws, therefore they are inferior to the king who ruleth all by law.

Ans.—The university, properly, is no otherwise ruled by laws than the king is ruled by laws. The university, formally, is the complete politic body, endued with a nomothetic faculty, which cannot use violence against itself, and so is not properly under a law.

QUESTION XX.

WHETHER OR NO INFERIOR JUDGES BE UNIVOCALLY AND ESSENTIALLY JUDGES, AND THE IMMEDIATE VICARS OF GOD, NO LESS THAN THE KING, OR IF THEY BE ONLY THE DEPUTIES AND VICARS OF THE KING.

It is certain that, in one and the same kingdom, the power of the king is more in extension than the power of any inferior judge; but if these powers of the king and the inferior judges differ *intensive* and in *spece*, and nature is the question, though it be not all the question.

Assert.—Inferior judges are no less essentially judges, and the immediate vicars of God, than the king. Those who judge in the room of God, and exercise the judgment of God, are essentially judges and deputies of God, as well as the king; but inferior judges are such, therefore the proposition is clear. The formal reason, why the king is univocally and essentially a judge, is, because the king's throne is the Lord's throne; 1 Chron. xxix. 23, "Then Solomon sat on the throne of the Lord, as king, instead of David his father." 1 Kings i. 13, It is called David's throne, because the king is the deputy of Jehovah; and the judgment is the Lord's. I prove the assumption. Inferior judges appointed by king Jehoshaphat have this place, 2 Chron. xix. 6, "The king

said to the judges, Take heed what ye do, **כִּי לֹא לְאָדָם תִּשְׁפֹּטוּ כִּי לַיהוָה**, for ye judge not for man, but for the Lord." Then, they were deputies in the place of the Lord, and not the king's deputies in the formal and official acts of judging. Ver. 7, "Wherefore, now, let the fear of the Lord be upon you, take heed and do it; for there is no iniquity with the Lord our God, nor respect of persons, or taking of gifts.

Hence I argue, 1. If the Holy Ghost, in this good king, forbid inferior judges, wresting of judgment, respecting of persons, and taking of gifts, because the judgment is the Lord's, and if the Lord himself were on the bench, he would not respect persons, nor take gifts, then he presumeth, that inferior judges are in the stead and place of Jehovah, and that when these inferior judges should take gifts, they make, as it were, the Lord, whose place they represent, to take gifts, and to do iniquity, and to respect persons; but that the Holy Lord cannot do. 2. If the inferior judges, in the act of judging, were the vicars and deputies of king Jehoshaphat, he would have said, judge righteous judgment. Why? For the judgment is mine, and if I, the king, were on the bench, I would not respect persons, nor take gifts; and you judge for me, the Supreme Judge, as my deputies. But the king saith, They judge not for man, but for the Lord. 3. If, by this, they were not God's immediate vicars, but the vicars and deputies of the king, then, being mere servants, the king might command them to pronounce such a sentence, and not such a sentence as I may command my servant and deputy, in so far as he is a servant and deputy, to say this, and say not that; but the king cannot limit the conscience of the inferior judge, because the judgment is not the king's, but the Lord's. 4. The king cannot command any other to do that as king, for the doing whereof he hath no power from God himself; but the king hath no power from God to pronounce what sentence he pleaseth, because the judgment is not his own but God's. And though inferior judges be sent of the king, and appointed by him to be judges, and so have their external call from God's deputy the king, yet, because judging is an act of conscience, as one man's conscience cannot properly be a deputy for another man's conscience, so neither can an inferior judge, as a judge, be a deputy for a king. There-

fore, the inferior judges have designation to their office from the king; but if they have from the king that they are judges, and be not God's deputies, but the king's, they could not be commanded to execute judgment for God, but for the king: (Deut. i. 17.) Moses appointed judges, but not as his deputies to judge and give sentence, as subordinate to him; for the judgment (saith he) is the Lord's, not mine. 5. If all the inferior judges in Israel were but the deputies of the king, and not immediately subordinate to God as his deputies, then could neither inferior judges be admonished nor condemned in God's word for unjust judgment, because their sentence should be neither righteous nor unrighteous judgment, but in so far as the king should approve it or disapprove it; and, indeed, that royalist, Hugo Grotius¹ saith so,—that an inferior judge can do nothing against the will of the supreme magistrate if it be so. Whenever God commandeth inferior judges to execute righteous judgment, it must have this sense, "Respect not persons in judgment, except the king command you; crush not the poor, oppress not the fatherless, except the king command you." I understand not such policy. Sure I am the Lord's commandments, rebukes and threats, oblige, in conscience, the inferior judge as the superior, as is manifest in these scriptures, Jer. v. 1; Isa. i. 17, 21; v. 7; x. 2; lix. 14; Jer. xxii. 3; Ezek. xviii. 8; Amos v. 7; Mic. iii. 9; Hab. i. 4; Lev. xix. 15; Deut. xvii. 11; i. 17; Exod. xxiii. 2.

Grotius saith,² "It is here as in a category: the middle specie is, in respect of the superior, a specie,—in respect of the inferior, a genus; so inferior magistrates in relation to those who are inferior to them and under them, are magistrates or public persons; but in relation to superior magistrates, especially the king, they are private persons, and not magistrates.

Ans.—Jehoshaphat esteemed not judges, appointed by himself, private men, 2 Chron.

xix. 6, 7, "Ye judge not for men, but for the Lord." We shall prove that under-judges are powers ordained of God: in Scotland the king can take no man's inheritance from him because he is the king; but if any man possess lands belonging to the crown, the king, by his advocate, must stand before the lord-judges of the session, and submit the matter to the laws of the land; and if the king, for property of goods, were not under a law, and were not to acknowledge judges as judges, I see not how the subjects in either kingdoms have any property. I judge it blasphemy to say, that a sentence of an inferior judge must be no sentence, though never so legal nor just, if it be contrary to the king's will, as Grotius saith.

He citeth that of Augustine: "If the consul command one thing, and the emperor another thing, you condemn not the power, but you choose to obey the highest." Peter saith, He will have us one way to be subject to the king, as to the supreme, *sine ulla exceptione*, without any exception; but to those who are sent by the king, as having their power from the king.

Arg. 1.—When the consul commandeth a thing lawful, and the king that same thing lawful, or a thing not unlawful, we are to obey the king rather than the consul. So I expone Augustine. We are not to obey the king and the consul the same way, that is, with the same degree of reverence and submission; for we owe more submission of spirit to the king than to the consul; but *magis et minus non variant speciem*, more or less varieth not the nature of things. But if the meaning be that we are not to obey the inferior judge, commanding things lawful, if the king command the contrary, this is utterly denied. But saith Grotius, "The inferior judge is but the deputy of the king, and hath all his power from him; therefore we are to obey him for the king."—*Ans.* The inferior judge may be called the deputy of the king, (where it is the king's place to make judges,) because he hath his external call from the king, and is judge *in fora soli*, in the name and authority of the king; but being once made a judge, *in foro poli*, before God, he is as essentially a judge, and in his official acts, no less immediately subjected to God than the king himself.

Arg. 2.—These powers to whom we are to yield obedience, because they are ordained of God, these are as essentially judges as

¹ Grotius de jure belli et pac. lib. 1, c. 4, Nam omnis facultas gubernandi in magistratibus, summæ potestati ita subijcitur ut quicquid contra voluntatem summæ imperantis faciant, id defectum sit ea facultate, ac proinde de pro actu privato habendum.

² Grotius ib. species intermedia, si genus respicias, est species, si speciem infra positam, est genus: ita magistratus illi, inferiorum rationem habita sunt publicæ, personæ, at superiores si considerentur, sunt privati.

the supreme magistrate the king ; but inferior judges are such, therefore inferior judges are as essentially judges as the supreme magistrate. The proposition is, Rom. xiii. 1, for that is the apostle's arguments ; whence we prove kings are to be obeyed, because they are powers from God. I prove the assumption : inferior magistrates are powers from God, Deut. i. 17 ; xix. 6, 7 ; Exod. xxii. 7 ; Jer. v. i. ; and the apostle saith, "The powers that be are ordained of God."

Arg. 3.—Christ testified that Pilate had power from God as a judge (say royalists) no less than Cæsar the emperor. (John xix. 11 ; 1 Pet. ii. 12.) We are commanded to obey the king and those that are sent by him, and that for the Lord's sake, and for conscience to God ; and (Rom. xiii. 5) we must be subject to all powers that are of God, not only for wrath, but for conscience.

Arg. 4. Those who are rebuked because they execute not just judgment, as well as the king, are supposed to be essentially judges, as well as the king ; but inferior judges are rebuked because of this, Jer. xxii. 15—17 ; Ezek. xlv. 9—12 ; Zeph. iii. 3 ; Amos v. 6, 7 ; Eccles. iii. 16 ; Mic. iii. 2—4 ; Jer. v. 1, 31.

Arg. 5.—He is the minister of God for good, and hath the sword not in vain, but to execute vengeance on the evil-doers, no less than the king. (Rom. xiii. 2—4.) He to whom agreeth, by an ordinance of God, the specific acts of a magistrate, is essentially a magistrate.

Arg. 6.—The resisting of the inferior magistrate in his lawful commandments is the resisting of God's ordinance, and a breach of the fifth commandment, as is disobedience to parents ; and not to give him tribute, and fear, and honour, is the same transgression, Rom. xiii. 1—7.

Arg. 7.—These styles, of gods, of heads of the people, of fathers, of physicians and healers of the sons of the Most High, of such as reign and decree by the wisdom of God, &c., that are given to kings, for the which royalists make kings only judges, and all inferior judges but deputed, and judges by participation, and at the second hand, or given to inferior judges. (Exod. xxii. 8, 9 ; John x. 35.) Those who are appointed judges under Moses (Deut. i. 16) are called, in Hebrew or Chaldee, (1 Kings viii. 1, 2 ; v. 2 ; Mic. iii. 1 ; Josh. xxiii. 2 ; Num. i. 16,) ראשי *rasce*, רישי *risi* fathers, (Acts vii. 2 ; Josh. xiv. 1 ; xix. 15 ; 1 Chron. viii. 28,)

healers, (Isa. iii. 7,) gods, and sons of the Most High. (Psal. lxxxii. 1, 2, 6, 7 ; Prov. viii. 16, 17.) I much doubt if kings can infuse godheads in their subjects. I conceive they have, from the God of gods, these gifts whereby they are enabled to be judges ; and that kings may appoint them judges, but can do no more : they are no less essentially judges than themselves.

Arg. 8.—If inferior judges be deputies of the king, not of God, and have all their authority from the king, then may the king limit the practice of these inferior judges. Say that an inferior judge hath condemned to death a paricide, and he be conveying him to the place of execution, the king cometh with a force to rescue him out of his hand ; if this inferior magistrate bear God's sword for the terror of ill-doers, and to execute God's vengeance on murderers, he cannot but resist the king in this, which I judge to be his office ; for the inferior judge is to take vengeance on ill-doers, and to use the co-active force of the sword, by virtue of his office, to take away this paricide. Now, if he be the deputy of the king, he is not to break the jaws of the wicked (Job xxix. 17) ; not to take vengeance on evil-doers (Rom. xiii. 4) ; nor to execute judgment on the wicked, Psal. cxlix. 9) ; nor to execute judgment for the fatherless (Deut. x. 18) ; except a mortal man's creator, the king, say Amen. Now, truly then, God, in all Israel, was to rebuke no inferior judge for perverting judgment,—as he doth, Exod. xxiii. 26 ; Mic. iii. 2—4 ; Zech. iii. 3 ; Num. xxv. 5 ; Deut. i. 16 ; for the king only is lord of the conscience of the inferior judge who is to give sentence, and execute sentence righteously, upon condition that the king, the only univocal and proper judge, first decree the same, as royalists teach.

Hear our Prelate (c. 4, p. 46).—How is it imaginable that kings can be said to judge in God's place, and not receive the power from God ? But kings judge in God's place. (Deut. i. 17 ; 2 Chron. xix. 6.) Let no man stumble (this is his *prolepsis*) at this, that Moses in the one place, and Jehoshaphat in the other, spake to subordinate judges under them. This weakeneth nowise our argument ; for it is a ruled case in law, *Quod quis facit per alium, facit per se*, all judgments of inferior judges are in the name, authority, and by the power of the supreme, and are but communicatively and derivatively from the sovereign power.